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Attorneys for Defendant Captain G. Serrato in his individual and official capacities

IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **CAPTAIN G. SERRATO, IN HIS INDIVIDUAL AND OFFICIAL CAPACITIES AS COMMANDER, DUBLIN AREA, CALIFORNIA HIGHWAY PATROL,** Defendant.	4:26-cv-05953-ASK **DEFENDANT SERRATO'S (IN HIS INDIVIDUAL AND OFFICIAL CAPACITIES) INITIAL DISCLOSURES**

Pursuant to Rule 26(a)(1)(A) of the Federal Rules of Civil Procedure, Defendant Captain G. Serrato, in his individual and official capacities, ("Defendant") makes the following initial disclosures:

I. PERSONS LIKELY TO HAVE DISCOVERABLE INFORMATION

Objections. To the extent that Rule 26(a)(1)(A) of the Federal Rules of Civil Procedure calls for listing of the personal addresses and telephone numbers of any state employees (including but not limited to those employed by California Highway Patrol (CHP), Defendant

objects on the grounds that such information is protected by the federal and state official information privilege, by California Evidence Code sections 1040, 1043, and 1045, California Penal Code section 832.5, California Civil Code section 1798 et seq., and the statutory and constitutional privacy rights of the identified individuals. CHP employees identified herein may be contacted through defense counsel.

Any description of subject matter of which the following witnesses may have knowledge is not intended to be exhaustive; rather, it is a good faith attempt to provide a general indication of each witness' connection to the incident. It is anticipated that further investigation and discovery will be necessary to determine each potential witness's areas of knowledge and information. Defendant identifies the following witnesses as potential sources of discoverable information on, at a minimum, issues of liability (or lack thereof), immunity, and damages (or lack thereof).

Litigation-related contact with any current or former employees of the California Highway Patrol must be approved of by defense counsel, Haiyang Allen Li.

1. **Plaintiff Brendan Ngehsi Newanforbi**, address and telephone number known to Plaintiff. Party to case and percipient witness and involved party in incident on November 1, 2024, which is the basis for Plaintiff's request for U-visa certification. Plaintiff Newanforbi is expected to have general knowledge of the factual basis of the allegations within the operative First Amended Complaint.

2. **Defendant G. Serrato,** may be contacted through defense counsel. Defendant Serrato is expected to have knowledge regarding Plaintiff's request for U-visa certification and the reasoning behind the denial of Plaintiff's request for U-visa certification.

3. **CHP Officer Melano,** may be contacted through defense counsel. Officer Melano was involved in the incident on November 1, 2024, which is the basis for Plaintiff's request for U-visa certification. Officer Melano is expected to have knowledge of the circumstances surrounding Plaintiff's stop, detention, and arrest on November 1, 2024, including facts supporting the existence of probable cause to arrest of Plaintiff and search his vehicle on November 1, 2024, the field sobriety tests conducted prior to Plaintiff's arrest on that date, as well as knowledge of events following Plaintiff's arrest, and/or the reports related to Plaintiff's arrest.

4. **CHP Officer Meza-Gonzalez,** may be contacted through defense counsel. Officer Meza-Gonzalez was involved in the incident on November 1, 2024, which is the basis for Plaintiff's request for U-visa certification. Officer Meza-Gonzalez is expected to have knowledge of the circumstances surrounding Plaintiff's stop, detention, and arrest on November 1, 2024, including facts supporting the existence of probable cause to arrest of Plaintiff and search his vehicle on November 1, 2024, the field sobriety tests conducted prior to Plaintiff's arrest on that date, as well as knowledge of events following Plaintiff's arrest, and/or the reports related to Plaintiff's arrest.

5. **Diana Candelaria,** Driver Safety Officer, may be contacted through defense counsel in the matter of *Nforbi v. Candelaria et al., Case* No.: 3:26-cv-08272-LJC. Ms. Candelaria is expected to have knowledge of Plaintiff's January 24, 2025, hearing under Vehicle Code section 13353 following his arrest for DUI on November 1, 2024, and the decision reached after that hearing. Ms. Candelaria is expected to have knowledge of the evidence related to the one-year suspension of Plaintiff's Class A Commercial Driver's License as a result of the November 1, 2024, incident.

6. **CHP Officer Laruen Del Carlo,** may be contacted through defense counsel. Officer Del Carlo signed Plaintiff's Penal Code section 849 Certificate of Detention. Officer Del Carlo is expected to have knowledge regarding Plaintiff's detention following his arrest on November 1, 2024.

7. **Plaintiff's parole officer in 2024.** Name and address currently unknown to Defendant but known to Plaintiff. Plaintiff's parole officer in 2024 may have information regarding the November 1, 2024, incident, which is the basis for Plaintiff's request for U-visa certification, as well as information regarding Plaintiff's employment situation in 2024, which is part of the basis of Plaintiff's claimed damages.

II. Documents

Defendant identifies the following documents under Rule 26(a)(1)(A)(ii) of the Federal Rules of Civil Procedure:

1. Dashcam/MVARS footage capturing the November 1, 2024, incident.

2. Notification of Findings and Decision in APS Case No. 34739340, by Driver Safety Officer Candelaria, regarding the suspension of Plaintiff's driver's license following the November 1, 2024, incident.

3. Plaintiff's Detention Certificate issued by Dublin CHP, showing that Plaintiff was released from custody on November 5, 2024

4 Plaintiff's Arrest/Investigation Report related to the November 1, 2024, incident, and

5. Written denial letter sent to Plaintiff following the denial of U-visa certification by Defendant Serrato.

III. Damages

Defendant is not claiming damages.

IV. Insurance

There is no applicable insurance policy as the Defendant, in his official capacity, is self-insured.

Dated: September 8, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/Haiyang Allen Li

HAIYANG A. LI
Deputy Attorney General
Attorneys for Defendant
Captain G. Serrato in his individual and official capacities

DECLARATION OF SERVICE BY E-MAIL

Case Name:	Brendan N. Newanforbi v. Captain G. Serrato, et al.
Case Number:	4:26-cv-05953-ASK
Party Represented:	*Defendant, Captain G. Serrato in his individual and official capacities*

Declaration of Electronic Service

1. I am at least 18 years of age and not a party to this matter.

2. I am employed in the Office of the Attorney General of the State of California. My business address is 300 South Spring Street, Suite 1702, Los Angeles, CA 90013-1230, County of Los Angeles.

3. My electronic service address is Diana.Montufar@doj.ca.gov.

4. On September 9, 2026, I electronically served the following document[s]:

    a. **DEFENDANT SERRATO'S (IN HIS INDIVIDUAL AND OFFICIAL CAPACITIES) INITIAL DISCLOSURES**

5. I electronically served the aforementioned document[s] by emailing them to the following individual[s]:

Brendan Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-mail Address: BNN.CDL@gmail.com
Plaintiff

I declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing is true and correct, and that this declaration was executed on September 9, 2026.

Diana Montufar
Declarant

Diana Montufar
Signature

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